

Emergency Provisions in India

PARLIAMENT OF INDIA

Emergency provisions in India

Emergency provisions are adopted in India from Weimar Constitution of Germany.

In Indian constitution there are three kind of emergency provisions:

- (1) Article 352 – National Emergency
- (2) Article 356 – President's Rule
- (3) Article 360 – Financial Emergency

National Emergency (Article 352)

- (a) If the President is satisfied that there exist a grave emergency whether due to war or external aggression or armed rebellion, then President can proclaim emergency to that effect. Such a proclamation can be made for the whole of India or any part thereof. The President can proclaim National Emergency only on the written advice of the Cabinet.
- (b) The President has power to revoke or modify the National Emergency. All such proclamations of Emergency shall have to be sent to Parliament for approval & it ceases to be operational if not approved within 1 month of the proclamation of Emergency. Such approval by Parliament is to be on the basis of Special Majority of not less than 2/3rd of members present & voting & the majority of the House. Emergency shall be imposed for not more than 6 months from the date of approval.
- (c) At the expiry of 6 months it ceases unless approved by Parliament again. If Lok Sabha is dissolved then proclamation of Emergency, it must be approved by the Rajya Sabha within 1 month & reconstituted Lok Sabha must approve within 1 month of its reconstitution.
- (d) Lok Sabha enjoys powers to disapprove continuation of Emergency at any stage. In such case if not less than 1/10th of members (55) of Lok Sabha give in writing to the Speaker if Lok Sabha is in session or to the President if Lok Sabha is not in the session, expressing intention to more resolution for the disapproval of National Emergency. Then special session of Lok Sabha shall be convened within 14 days. If Lok Sabha disapproves

continuance of National Emergency then President shall have to revoke National Emergency.

Emergency in States on President's Rule (Article 356)

Under Article 356 if the President is satisfied on the report of Governor or otherwise that there exists a grave situation in a State where the administration of the State cannot be carried out in accordance with provisions of Constitution, then he can:

- (a) Takeover the administration of the State himself and
- (b) Notify that the Parliament shall exercise jurisdiction over State subject for the State concerned, the President cannot take over the powers conferred on the High Courts of State concerned.

Every proclamation made under Article 356 ceases to be in operation unless approved by both Houses of the Parliament within 2 months after its proclamation. Once, approved by Parliament, Emergency shall be enforced for not more than 6 months from the date of proclamation by the President.

Such an approval by the Parliament needs only simple Majority. If Lok Sabha stands dissolved then Rajya Sabha shall have to approve it within 2 months & Lok Sabha shall approve it within 1 month of its reconstitution. However, Parliament can extend it for a further period of 6 months only.

If it has to approve beyond 1 year then two conditions shall have to be satisfied.

- There shall be National Emergency in force either in whole of the State concerned or in part thereof.
- Election Commission is satisfied that under prevailing conditions general election to State Legislative Assembly of the State concerned cannot be held.

But under no circumstances, State Emergency cannot be extended beyond 3 years. To extend it further, constitutional amendment is required.

Financial Emergency

Under Article 360 the President enjoys the power to proclaim the financial Emergency. If he is satisfied that a situation has arisen that financial stability & credit of

India or any part thereof is threatened he may proclaim emergency to that effect.

All such proclamations:

- (a) Can be varied or revoked by the President.
- (b) Financial Emergency must be approved by the Parliament within 2 months after its proclamation. Once it is approved, it will remain till the President revokes it.

Effects of Financial Emergency

- (1) President is empowered to suspend the distribution of financial resources with States.

- (2) President can issue directions to States to follow canons of financial propriety.
- (3) He can direct State Govt. to decrease salaries allowances of Civil Servants & other Constitutional dignitaries.
- (4) President can direct the Govt. to resume all the financial & Money Bills passed by legislature for his consideration. The President can issue directions for the reduction of salaries & allowances of Judges of the Supreme Court & the High Courts.